



POLICE DEPARTMENT CITY OF NEW YORK

December 10, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Salahadine Mitchell
Tax Registry No. 921071
44 Precinct
Disciplinary Case Nos. 2013-10705, 2014-11666 &
2014-12567

Charges and Specifications:

Disciplinary Case No. 2013-10705

1. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about October 22, 2013, was discourteous to Captain Martine Materasso, Tax No. 925686, to wit: said Police Officer did, upon being approached and questioned by Captain Materasso regarding the appropriateness of utilizing an electronic device while on post, fail to salute said Captain and did respond "no," in a sarcastic manner.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
GENERAL REGULATIONS

P.G. 206-02, Page 1, Paragraph 2B – COURTESIES - GENERAL
REGULATIONS

2. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about October 22, 2013, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer was inattentive while on post in that said Police Officer's back was toward traffic and he was using a cellular phone.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED
CONDUCT – GENERAL REGULATIONS

P.G. 202-21, Page 1, Paragraph 5 – POLICE OFFICER DUTIES AND
RESPONSIBILITIES

P.G. 203-06, Page 2, Paragraph 17 – PERFORMANCE ON DUTY –
PROHIBITED CONDUCT – GENERAL REGULATIONS

Disciplinary Case No. 2014-11666

1. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about March 11, 2014, did engage in conduct prejudicial to the

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good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to conduct a complete and proper investigation regarding the 10-54 (Suicidal Emotionally Disturbed Person) radio run said Police Officer had responded to.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT – GENERAL REGULATIONS

P.G. 216-05, Page 1, Paragraph 1 – MENTALLY ILL OR EMOTIONALLY DISTURBED PERSONS AIDED CASES.

2. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about March 11, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did improperly finalize a 10-54 (Suicidal Emotionally Disturbed Person) radio run.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT – GENERAL REGULATIONS

3. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about March 11, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to remain at the scene of a 10-54 (Suicidal Emotionally Disturbed Person) for the response of the patrol supervisor and the Emergency Services Unit.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT – GENERAL REGULATIONS

P.G. 216-05, Page 1 – MENTALLY ILL OR EMOTIONALLY DISTURBED PERSONS AIDED CASES

Disciplinary Case No. 2014-12567

1. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about September 25, 2014, was wrongfully and without just cause off post and away from said Police Officer's assigned duties on one (1) occasion during said Police Officer's tour of duty. *(As amended)*

P.G. 203-05, Page 1, Paragraphs 1 & 2 – PERFORMANCE ON DUTY
GENERAL GENERAL REGULATIONS

2. Said Police Officer Salahadine Mitchell, while on-duty and assigned to the 32 Precinct, on or about September 25, 2014, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to monitor said Police Officer's Department issued radio.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT – GENERAL REGULATIONS

Appearances:

For Department Advocate's Office: Jamie Moran, Esq.

For Respondent: John Tynan, Esq.

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Hearing Date (s):

October 5 and October 6, 2015.

Decision:

Guilty

Trial Commissioner:

ADCT Robert W. Vinal

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 5 and October 6, 2015. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. DAO called Inspector Martine Materasso, Lieutenant Christopher Phelan, Police Officer Marjorie Pierre, Sergeant Curtis Crystal, Sergeant Joan Perkins and Police Officer Juanita McMillan as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

This trial covered three separate on-duty incidents. Since most of the facts regarding these three incidents are not in dispute, the testimony that was presented and the analysis of this testimony can be summarized.

POLICE OFFICER SALAHADINE MITCHELLOctober 22, 2013 Incident

This incident involved an interaction between Respondent and then-Captain (now Inspector) Martine Materasso when Materasso arrived at Respondent's one-officer foot post in an RMP driven by Lieutenant Christopher Phelan. Respondent was assigned to a protest detail stationary foot post next to a street. Respondent asserted that he had received an emergency text message on his personal cell phone and he acknowledged that when Materasso and Phelan arrived at his post he was leaning on a lamp post with his back turned toward the street texting a reply on his cell phone. Although Respondent asserted that he was not unaware of what was going on around him, his own factual admissions sufficiently establish that he was inattentive while on post.

I also find Respondent guilty of having been discourteous to Materasso when he was questioned by her regarding the appropriateness of using his cell phone while on post. Materasso and Phelan testified that when Materasso asked Respondent if he saw anything wrong with being on his cell phone, he answered, "Nope" in a sarcastic tone. Respondent testified that Materasso initially asked him, "Is this a punishment post?" He replied, "Yes ma'm." When Materasso asked him, "Do you think it's a good idea to be using your cell phone?" Respondent admitted that he replied, "I don't see why not." Materasso then asked him, "Officer is that your answer?" and he replied, "Yes." Respondent asserted that he had addressed Materasso in a polite voice and that he was not intentionally being sarcastic when he responded to Materasso's question about using his cell phone. However, even if I credit Respondent's claim that he did not answer "Nope" but instead answered "I don't see why not" in response to Materasso's question about using his cell phone on post, his admitted response sounds like a sarcastic answer

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and Materasso's testimony that she perceived that Respondent was answering her question in a sarcastic manner is supported by Respondent's admission that she then asked him, "Officer is that your answer?"

Finally, I also find Respondent guilty of having been discourteous to Materasso by failing to salute her. Respondent testified that he did not salute Materasso when she arrived at his foot post, even though he saw that she was wearing a white uniform shirt, because she was seated inside an RMP. However, Respondent acknowledged that even after Materasso exited the RMP, he did not salute her. Patrol Guide Procedure No. 203-02 requires police officers to "salute" a "supervisory officer in uniform."¹ This procedure does not exempt an officer from saluting merely because the supervisor is seated inside a Department vehicle. Moreover, Respondent admitted that he did not tender a salute to Materasso even after she exited the RMP.

March 11, 2014 Incident

This incident involved the response of Respondent, who was driving a RMP, and his partner, Police Officer Marjorie Pierre who was serving as the recorder, to a radio call that a suicidal Emotionally Disturbed Person (EDP) was at [REDACTED]

[REDACTED] It is charged that Respondent failed to conduct a complete and proper investigation regarding this radio run, that he improperly finalized his police response, and that he failed to remain at the scene to await the response of the patrol supervisor and the Emergency Services Unit (ESU).

Respondent and Pierre testified that when they arrived at the multi-dwelling building they approached the entrance door and pressed the doorbells to the apartments

¹ Patrol Guide Procedure No. 203-02 (2) (b).

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but they received no response. Since the building was attached to other buildings on both sides, they were not able to walk around to the rear of the building. They radioed the dispatcher and requested a call back to whoever had called 911. Pierre recalled that Respondent told her, "Let's mark it 1090U (unable to gain entrance)." As the recorder, she radioed this disposition to the dispatcher. They then drove away [REDACTED] [REDACTED]. Pierre testified that because of this she was issued an "A" Command Discipline and forfeited "one or two" vacation days as a penalty.

They soon received a call from the dispatcher to return to [REDACTED] immediately. When they arrived, they saw an ambulance in front [REDACTED] and saw ESU personnel assisting a person on the front stoop of [REDACTED]. Sergeant Curtis Crystal arrived at the scene and asked them why they had radioed a disposition of 1090U and why had they not waited at [REDACTED] for a supervisor to arrive. Crystal testified that since this was a possible suicide situation, merely pressing doorbells and then driving away constituted "not enough" investigation.

Respondent admitted that: He was aware that the Patrol Guide requires that a supervisor respond to the scene of a 911 call regarding an EDP who has been described as suicidal; that the only investigative action he took at the scene was to press doorbell buttons; and that his Activity Log entry shows from the time of his arrival [REDACTED] [REDACTED] to the time when he departed, he had been there for only "five to seven minutes."

Based on Respondent's admissions, I find him guilty of having failed to conduct a complete and proper investigation; having improperly finalized his police response; and having failed to remain at the scene to await the response of the patrol supervisor and ESU.

POLICE OFFICER SALAHADINE MITCHELLSeptember 25, 2014 Incident

This incident involved attempts by Sergeant Joan Perkins, the patrol supervisor, and her driver, Police Officer Juanita McMillan, to raise Respondent on his radio and to locate Respondent who was assigned to a one-officer foot post at [REDACTED] between Fifth Avenue and Lenox Avenue, Manhattan, where a shooting incident had previously occurred.

Respondent took his meal that day from 1200 hours to 1300 hours. Perkins and McMillan testified that they arrived at Respondent's foot post at 1303 hours. When they did not see Respondent there, Perkins instructed McMillan to raise Respondent's assigned radio. McMillan testified that she tried to raise Respondent's radio several times and that she and Perkins conducted a grid search for Respondent over a five block radius surrounding his post and that they circled the area in their car for "two hours" but could not find Respondent. Perkins corroborated McMillan's testimony that they circled the area of Respondent's post looking for him for "about two hours" but could not find him. Perkins testified that she also tried to have the dispatcher raise Respondent on his radio without success.

Finally, at 1448 hours, Perkins received a radio transmission from Respondent and as she started to speak to him on her radio, she saw him walking over to her RMP. Respondent testified that when Perkins asked him, "Where were you?" he told her, "I was handling a dispute." However, Respondent's claim that he was handling a dispute between 1303 hours and 1448 hours is not supported by his Activity Log entries for that day which show that after he handled a dispute at 1130 hours, he took no other police action that day. Although Respondent asserted that "I believe I was on 129th Street

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between 1303 hours and 1448 hours, he offered no explanation for why Perkins and McMillian were unable to find him there between 1303 hours and 1448 hours, other than his claim that he took a 20 minute "personal" from 1340 hours to 1400 hours.

With regard to Respondent's failure to respond to any of the calls made to his assigned radio by McMillian and the dispatcher between 1303 hours and 1448 hours, Perkins testified that after Respondent walked over to her RMP she asked him, "Is your radio working?" he answered, "Yes," and when she told him that she had been trying to raise him on his radio, he told her that he "didn't hear anything" on his radio. Although Respondent testified at this trial that he "may have mentioned" to Perkins that his "radio was not working properly," based on Perkins' testimony that he had responded affirmatively to her question about whether his radio was working, I reject Respondent's claim. Since Respondent confirmed that he had never had any previous problems with Perkins, the record is devoid of any reason Perkins would have to falsely assert that Respondent had told her that his radio was working. Finally, although McMillian confirmed that Respondent's assigned radio had a manual volume control, it was Respondent's responsibility to ensure that the volume on his radio was set to a level which was clearly audible.

Based on the above analysis, Respondent is found guilty as charged.

PENALTY RECOMMENDATIONS

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed as a police officer on June 30, 1998. Information from his personnel

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record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

The Advocate recommended that Respondent forfeit 25 vacation days and serve one year on dismissal probation. Respondent's attorney argued that the penalty to be imposed on Respondent should consist of no more than the loss of ten vacation days.

The trial record establishes that during a less-than-one-year period, Respondent committed misconduct while on duty on three separate occasions. The common thread that runs through the various acts of misconduct that he has been found guilty of engaging in during these three separate incidents is that he displays a cavalier attitude regarding the manner in which he performs his assigned duties and regarding complying with Department regulations and procedures.

Respondent's inattentiveness while he was on his post because he was using his cell phone to respond to a text message; his failure to salute a captain when she arrived at his post; and his sarcastic "I don't see why not" response to the captain's question "Do you think it's a good idea to be using your cell phone?" constitute misconduct which normally would be adjudicated at the command level.

However, Respondent's failure to conduct a complete and proper investigation regarding the suicidal EDP radio run he responded to; his improper finalization of his police response; and his failure to remain at the scene to await the response of the patrol supervisor and ESU constitutes serious misconduct. In Case Nos. 2008-84329 & 2008-84330 (signed Dec. 20, 2011), a 23-year officer and a nine-year officer each forfeited 15 vacation days even though they were found guilty only of having neglected to conduct a proper investigation regarding an EDP who was in need of medical treatment.

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Respondent's misconduct of being off post for nearly two hours and failing to monitor his assigned radio during that period also constitutes serious misconduct. In Case Nos. 2011-3650 & 2011-3651 (signed June 26, 2013), a 20-year officer with one prior adjudication and an eight-year officer who had no prior disciplinary record each forfeited 20 vacation days for being off post, failing to call the desk as required before going off post, and failing to make Activity Log entries. In those cases, the Police Commissioner disapproved the Trial Commissioner's recommended penalty of 15 vacation days and imposed the 20-day penalties.

Moreover, the Police Commissioner has consistently imposed penalties consisting of one year on dismissal probation and forfeitures of 20 to 25 vacation days where, as here, a Respondent has been found guilty of multiple instances of on-duty misconduct.

In Case No. 2008-84281 (signed Jan. 27, 2010), a six-year police officer who had no disciplinary record received a penalty of 30 vacation days and one year dismissal probation for failing to remain alert while on post, failing to maintain his activity log, failing to appear at CCRB, being off post for 25 minutes, and failing to have his regulation hat and personal protective equipment while on patrol.

Similarly, in Case No. 2012-7686 (signed Oct. 24, 2014), a 16-year police officer who had no prior disciplinary record received a penalty of one-year dismissal probation and forfeiture of 30 vacation days for leaving his post and failing to return before the end of his assigned tour of duty, failing to make Activity Log entries, refusing to follow an order to change into uniform before going to court, and failing to request the response of a patrol supervisor to the scene of a RMP accident.

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More recently, in Case Nos. 2010-3196 and 2012-8544 (signed March 4, 2015), a 21-year police officer with no prior disciplinary record forfeited 25 vacation days and was placed on dismissal probation for uttering insubordinate comments to supervisors on two occasions; failing to note in her Activity Log that she had left her post; failing to find contraband hidden under the rear seat of her RMP; and leaving her post without seeking permission to do so. In that case, the Police Commissioner deemed it necessary to add dismissal probation to the 25 vacation day penalty recommended by the Trial Commissioner because a period of monitoring was warranted.

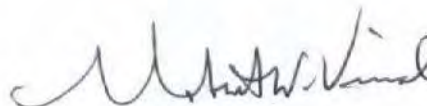
Finally, most recently, in Case No. 2014-11862 (signed June 12, 2015), a seven-year police officer who had one prior disciplinary adjudication, received a penalty consisting of dismissal probation and the forfeiture of 20 vacation days for failing to return to his post for the final six hours of his tour; failing to return his precinct parking permit after being transferred and continuing to use the permit; wrongfully displaying the permit and parking in front of a fire hydrant; and failing to report his early release from a court appearance to a supervisor. In that case also, the Police Commissioner found it necessary to add dismissal probation to the 20 vacation day penalty recommended by the Trial Commissioner because a period of monitoring was warranted.

The Advocate did not dispute Respondent's claim that since his reassignment from the 32 Precinct to the 44 Precinct on June 27, 2015, he has been issued only one Command Discipline. Nonetheless, based on his multiple instances of on-duty misconduct while he was assigned to the 32 Precinct, a period of monitoring appears to be warranted.

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Accordingly, I recommend that Respondent be DISMISSED from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code, during which he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. I further recommend that Respondent forfeit 25 vacation days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED

MAR 22 2016

WILLIAM J. BRATTON
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials

To: Police Commissioner

Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER SALAHADINE MITCHELL
TAX REGISTRY NO. 921071
DISCIPLINARY CASE NOS. 2013-10705; 2014-11666 & 2014-12567

Respondent received an overall rating of 3.5 on his 2013 annual performance evaluation, 4.0 on his 2012 annual evaluation, and 3.5 on his 2011 annual evaluation. He has no medals. [REDACTED]

[REDACTED] He has no formal disciplinary record. On February 10, 2014, he was placed in Level 2 Discipline Monitoring. This monitoring is continuing.

For your consideration.

Robert W. Vinal
Assistant Deputy Commissioner Trials